

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nora Chanko	Team: Squad #03	CCRB Case #: 201702789	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 04/09/2017 7:50 PM	Location of Incident: Atlantic Terminal Mall, 139 Flatbush Avenue	18 Mo. SOL 10/9/2018	Precinct: 78		
Date/Time CV Reported Sun, 04/09/2017 8:13 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 04/09/2017 8:13 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ivan Acevedo	00274	934975	078 PCT
2. POM Shmuel Tenenbaum	04518	947536	078 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Elizabeth Medina	02292	949316	078 PCT
2. POM Alex Merizalde	28183	950881	078 PCT
3. POM Arie Benchetrit	01078	950067	078 PCT
4. POM Gregory Schoendorf	03671	949639	078 PCT
5. POF Alexis Martinez	04882	953056	078 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Shmuel Tenenbaum	Off. Language: Police Officer Shmuel Tenenbaum made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)	A . Substantiated
B . SGT Ivan Acevedo	Force: Sergeant Ivan Acevedo used physical force against § 87(2)(b)	B . Exonerated
C . SGT Ivan Acevedo	Abuse: Sergeant Ivan Acevedo threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Shmuel Tenenbaum	Abuse: Police Officer Shmuel Tenenbaum refused to provide his name and/or shield number to § 87(2)(b)	D . Substantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the call processing system on April 9, 2017. At approximately 7:50 p.m. on April 9, 2017, § 87(2)(b) was in the Atlantic Terminal Mall in Brooklyn when he saw a group of officers, including PO Shmuel Tenenbaum and PO Elizabeth Medina of the 78th Precinct, running inside. § 87(2)(b) held the door open for them and said, “Hey, look at the piggy,” to PO Tenenbaum as he entered, to which PO Tenenbaum replied, “Shut up, faggot,” (**Allegation A**). § 87(2)(b) began to leave the mall, but then went back upstairs to obtain PO Tenenbaum’s information and got into a verbal altercation with other civilians. Sgt. Ivan Acevedo, also of the 78th Precinct, grabbed § 87(2)(b)’s arms, pushed him up against the wall, and threatened to arrest him (**Allegations B and C**). § 87(2)(b) got on the escalator to exit the mall, and turned around and looked at PO Tenenbaum, who was behind him. § 87(2)(b) asked for PO Tenenbaum’s name, but he did not provide his name or any other identifying information (**Allegation D**). § 87(2)(b) walked outside and asked Sgt. Acevedo for his name, which he provided. § 87(2)(b) then walked to the 78th Precinct stationhouse and filed a complaint against PO Tenenbaum and Sgt. Acevedo.

§ 87(2)(b) provided video footage that he took outside the Atlantic Terminal Mall, which does not capture any allegations and therefore has not been added to this report.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation but also expressed a desire for the officers to be disciplined. § 87(2)(g) the complaint was investigated.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On August 24, 2017, a FOIL request confirmed that § 87(2)(b) had not filed any Notices of Claim regarding the incident (01 Board Review).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)’s first complaint with the CCRB (02 Board Review).
- PO Tenenbaum has had three allegations from three CCRB cases pleaded against him in his eight year tenure with the CCRB. None were substantiated § 87(2)(g)
- Sgt. Acevedo has had 10 allegations from six CCRB cases pleaded against him over the course of his 12 year tenure with the NYPD. None of those allegations have been substantiated. In case 200701731, which was closed as complainant unavailable, Sgt. Acevedo allegedly shoved a civilian away from another civilian and an officer who were having an altercation. In case 200808912, which was closed as complainant uncooperative, Sgt. Acevedo allegedly pushed a male away and told him to step back, and later allegedly pushed him against a fence. In case 200816558, an allegation was made that Sgt. Acevedo used excessive force while handcuffing a civilian who was uncooperative and resisting being placed in handcuffs. This allegation was exonerated. In case 201013542, which was closed as complainant uncooperative, Sgt. Acevedo

allegedly stomped on a civilian who was on the ground. In case 201602284, a threat of arrest and physical force allegation were pleaded against Sgt. Acevedo and exonerated. § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Offensive Language: Police Officer Shmuel Tenenbaum made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)

§ 87(2)(b) stated that as he was exiting the Atlantic Terminal Mall, he saw a group of six to seven officers entering and held the door open for them (03 Board Review). There were numerous civilians around, and § 87(2)(b) believed that a nearby sporting event had just finished. § 87(2)(b) saw PO Tenenbaum run inside while trying to hold his pants up and said, “Hey piggy, look at the piggy right there. Look at the piggy.” PO Tenenbaum got on an escalator, turned around, and said, “Shut up, faggot,” or, “Shut up, you faggot.” § 87(2)(b) walked out the door, but then became upset that PO Tenenbaum made that remark and returned to obtain his information.

§ 87(2)(b) did not provide the details of the complaint in the message he left on the CCRB’s call processing system on the evening of the incident, but during a subsequent phone statement, he stated that PO Tenenbaum said, “Shut up, faggot,” after he called PO Tenenbaum a “piggy,” (04 and 05 Board Review). In the complaint that § 87(2)(b) filed at the 78th Precinct stationhouse that evening, § 87(2)(b) stated that he called PO Tenenbaum a “piggy,” and PO Tenenbaum called him a “faggot,” (06 Board Review).

PO Tenenbaum stated he and other officers responded to officers requesting additional units in regards to an assault (07 Board Review). When PO Tenenbaum arrived at the mall, § 87(2)(b) held the door open, yelled, “Fuck you,” and called them “piggies” as they ran by. PO Tenenbaum denied responding to § 87(2)(b)’s comment, saying, “Shut up, faggot,” or making any verbal observations about § 87(2)(b)’s perceived sexuality. PO Tenenbaum went into the Applebee’s upstairs where the incident was occurring, and saw § 87(2)(b) after he exited the Applebee’s. § 87(2)(b)

said he was going to file a complaint, but PO Tenenbaum denied that § 87(2)(b) complained to him that he had used the word “faggot.”

§ 87(2)(g) (08 Board Review). PO Medina first denied hearing any officer say anything to § 87(2)(b) in response to his remarks, then said that she did not know whether the alleged statement was made while she was present, and did not know or remember if anyone used the word “faggot” towards him.

PO Schoendorf stated that he was with PO Martinez and PO Tenenbaum when § 87(2)(b) called the officers “pigs” and said, “Fuck the pigs,” (09 Board Review). PO Schoendorf could not say whether PO Tenenbaum reacted to § 87(2)(b) in any way, and later denied that PO Tenenbaum said, “Shut up, faggot,” and said he did not hear “anything like that.”

PO Martinez corroborated PO Schoendorf’s statement, with the exception that she did not remember whether PO Tenenbaum was present at the time (10 Board Review). PO Martinez did not know whether PO Tenenbaum made the alleged statement and denied hearing him make the alleged statement.

PO Merizalde, who was working with Sgt. Acevedo, stated that when he approached the Applebee’s, § 87(2)(b) was upstairs (11 Board Review). Fifteen minutes after the incident, PO Merizalde and Sgt. Acevedo went to the 78th Precinct stationhouse and § 87(2)(b) was there stating he wanted to make a complaint because somebody called him a “fag.” PO Merizalde did not recall whether § 87(2)(b) mentioned that an officer called him a “fag” before coming to the stationhouse, and did not recall any other complaints § 87(2)(b) had. PO Merizalde did not did not hear any officer call § 87(2)(b) a “fag” or make any other references to his perceived sexuality.

PO Benchetrit did not see § 87(2)(b) inside the mall, and was in the stationhouse later when § 87(2)(b) came in and said, “He called me a faggot,” (12 Board Review). PO Benchetrit did not remember who § 87(2)(b) was complaining about, and did not later learn if an officer had used the word “faggot” towards him.

When Sgt. Acevedo arrived at the location, he saw § 87(2)(b) at the top of the escalator interacting with a group of civilians (13 Board Review). Sgt. Acevedo did not become aware that § 87(2)(b) called officers “pigs” or “piggies.” Sgt. Acevedo did not observe § 87(2)(b) have interactions with any other officers, and denied that anyone made the alleged statement.

The 78th Precinct Command Log notes that at 9:00 p.m. on April 9, 2017, § 87(2)(b) complained about Sgt. Acevedo at the stationhouse (14 Board Review). This entry does not note that § 87(2)(b) had a complaint about any other officer, and does not note the specific complaint.

Sgt. Assing added comments to the complaint filed by § 87(2)(b) at the stationhouse; he said it was “very apparent” that § 87(2)(b) was intoxicated and smelled of marijuana (06 Board Review). Sgt. Assing noted that § 87(2)(b) “stated he called officers ‘piggy’ and in turn was called a ‘faggot.’”

Patrol Guide Procedure 203-10 prohibits officers from making discourteous or disrespectful remarks regarding a person’s sexual orientation (15 Board Review).

§ 87(2)(g)

Therefore, it is recommended that

Allegation A be *substantiated*.

Allegation B – Force: Sergeant Ivan Acevedo used physical force against § 87(2)(b)

Allegation C – Abuse of Authority: Sergeant Ivan Acevedo threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that he reentered the mall to obtain PO Tenenbaum's information and got on the escalator (03 Board Review). A male and female officer got on behind § 87(2)(b) and a male and female civilian who had been present when § 87(2)(b) called PO Tenenbaum a "piggy" got on behind the officers. The civilians yelled at § 87(2)(b) and told him that he could not call officers pigs, and § 87(2)(b) said that he could. Once they got off the escalator, § 87(2)(b) and the civilians were about an arm's length away and the officers were between them. The male civilian reached towards § 87(2)(b) to push him, but did not touch his body, and the female officer touched § 87(2)(b) who moved back on his own volition. Officers, including Sgt. Acevedo, came out of the Applebee's. Sgt. Acevedo asked other officers if § 87(2)(b) was the person who had called them "pigs," and said, "You're calling us pigs." As Sgt. Acevedo said this, he grabbed § 87(2)(b)'s arm and shoved him in a pushing and upwards motion, which caused § 87(2)(b) to make contact with a wall about a foot away. Sgt. Acevedo made a statement like, "You can leave by yourself, or you can come with us to the precinct," which § 87(2)(b) interpreted as a threat to arrest him for disorderly conduct or a similar charge. § 87(2)(b) said, "You better get your fucking hands off me," and Sgt. Acevedo let go of him. Sgt. Acevedo said, "Get out of here," and guided and shoved § 87(2)(b) towards the escalator. § 87(2)(b) went down the escalator and left the mall.

Sgt. Acevedo stated that as he rode the escalator up to the floor with the Applebee's, he saw § 87(2)(b) and a male talking to each other, cursing at each other, and yelling profanities in the presence of seven or eight civilians (13 Board Review). Sgt. Acevedo believed that § 87(2)(b) and the male were intoxicated because he smelled alcohol, they were slurring their speech, and because of the

way they were talking. They had not touched, but they were “about to get into” an altercation or fight and § 87(2)(b) tensed up and raised his hand, which Sgt. Acevedo demonstrated by bringing his elbows up and out to the sides of his body. § 87(2)(b) and the male were about four to five feet apart. Sgt. Acevedo went in between the males, placed his hand on § 87(2)(b)'s shoulders, and applied the necessary force to place § 87(2)(b) against a wall. Sgt. Acevedo did this to prevent any fighting and move § 87(2)(b) as far away as possible from the other male. Sgt. Acevedo did not recall any commands he gave verbatim as he separated the males. Once § 87(2)(b) was placed against the wall, Sgt. Acevedo kept his hands on him and explained that if he continued with his behavior he would have to arrest him, though he did not want to § 87(2)(b) that. § 87(2)(b) did not say anything to Sgt. Acevedo and looked away, which led Sgt. Acevedo to believe that he was listening and the situation was deescalated. Sgt. Acevedo took his hands off § 87(2)(b) said, “Let’s go outside,” and escorted him downstairs by walking behind him. When asked what he would have arrested § 87(2)(b) for, Sgt. Acevedo said § 87(2)(b) had prevented him from responding to the job, and his legal suggested obstructing governmental administration. Sgt. Acevedo also said that he could have maybe arrested him for criminal trespassing, though he did not learn that anyone had asked § 87(2)(b) to leave the public area he was in. Sgt. Acevedo noted that there was a potential that § 87(2)(b) could have assaulted the male.

PO Merizalde said that as he came upstairs a male and female began speaking to him and thanking him and other police officers (11 Board Review). § 87(2)(b) started cursing, calling the officers pigs, and “got into” the civilian’s face; PO Merizalde said they were a few inches apart and did not recall whether they touched. PO Merizalde instructed § 87(2)(b) to move back verbally and touched him to move him back. PO Merizalde thought that § 87(2)(b) was intoxicated, and told the other male to leave, which he did. Sgt. Acevedo was coming up the escalator, and as additional officers came out of the Applebee’s, § 87(2)(b) again started saying, “Fuck you, you pigs,” and was being aggressive. Sgt. Acevedo asked § 87(2)(b) to leave, and § 87(2)(b) refused to § 87(2)(b) so. Sgt. Acevedo put his hands on § 87(2)(b)'s chest and again told § 87(2)(b) to leave. § 87(2)(b) again verbally refused, and Sgt. Acevedo asked nearby officers to escort him outside. Sgt. Acevedo did not touch § 87(2)(b) in any other way, and PO Merizalde did not recall Sgt. Acevedo making the alleged statement or threatening § 87(2)(b) with arrest. To PO Merizalde’s knowledge, § 87(2)(b) could not have been arrested for anything.

PO Martinez said that as she exited the Applebee’s there were 10 to 15 civilians present, and three to five of them were arguing with § 87(2)(b) (10 Board Review). PO Martinez and PO Schoendorf separated § 87(2)(b) and the group (who had been about 10 feet apart) and told the group to leave, which they did. Sgt. Acevedo was present and within earshot of PO Martinez but she was not paying attention to what he was saying, and she could not see him. PO Martinez did not recall Sgt. Acevedo making physical contact with § 87(2)(b) while she was present and did not see Sgt. Acevedo use the alleged force, but her back was to both him and § 87(2)(b) PO Martinez did not hear Sgt. Acevedo make the alleged statement or any threats to take further action against § 87(2)(b) From what she observed, § 87(2)(b) was not doing anything he could have been arrested for.

§ 87(2)(g)

PO Schoendorf did not know if Sgt. Acevedo interacted with § 87(2)(b) though he did tell a group of people to leave. Sgt. Acevedo did not

threaten arrest, and PO Schoendorf did not see him make physical contact with anyone or use the alleged force.

PO Medina did not remember seeing an officer push § 87(2)(b) against a wall while she was there, and did not hear any officer tell him that he could leave by himself or come with them to the precinct (08 Board Review).

PO Tenenbaum stated that he saw officers interacting with § 87(2)(b) and asking him to leave the mall, but did not hear any officer threaten § 87(2)(b) with arrest or see any officer make physical contact with him (07 Board Review).

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of the service or another person, and Procedure 221-02 requires officers to use only the reasonable force necessary to use control (16 and 17 Board Review). According to Penal Law 195.05, a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function, or prevents or attempts to prevent a public servant from performing an official function (18 Board Review). Penal Law 140.05 prohibits a person from knowingly entering or unlawfully remaining in or upon premises (19 Board Review). According to Penal Law 240.20, person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, they engage in fighting or in violent, tumultuous or threatening behavior, make unreasonable noise, or use abusive or obscene language in a public place, among other things (20 Board Review).

It is undisputed that § 87(2)(b) and a male had a verbal dispute regarding his earlier statements towards police officers, and that while they did not make physical contact, one party made a movement towards the other as if to start a physical fight. It is also undisputed that Sgt. Acevedo grabbed § 87(2)(b) by his forearms and moved him backwards until he was against a wall. § 87(2)(g)

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Sgt. Acevedo stated that he threatened to arrest § 87(2)(b) and stated that he could have arrested him for obstructing governmental administration or trespassing. § 87(2)(g)

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§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be *exonerated*.

Allegation D – Abuse of Authority: Police Officer Shmuel Tenenbaum refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(b) stated that once he was on the escalator, he turned around and looked at PO Tenenbaum, and said, “What’s your name,” (03 Board Review). Initially, § 87(2)(b) said that PO Tenenbaum did not respond, but he later said that he did not remember if PO Tenenbaum said anything. § 87(2)(b) said, “You need to tell me your name,” but PO Tenenbaum did not provide his name or shield number. § 87(2)(b) stated that he asked for PO Tenenbaum’s information a couple of times. § 87(2)(b) looked at PO Tenenbaum’s badge, which he remembered as 4815 or 4518. § 87(2)(b) left the mall and began to walk away, but did not like that Sgt. Acevedo had pushed him up against the wall. § 87(2)(b) walked back to Sgt. Acevedo and asked for his name and shield number, which he provided. § 87(2)(b) then went into the 78th Precinct stationhouse to file a complaint about the incident. In his handwritten complaint, § 87(2)(b) said that the officer who made the offensive remark to him had shield number 4815, and said that a “Sgt. Ansorvino” had pushed him up against the wall and threatened to arrest him (06 Board Review).

PO Tenenbaum, shield number 4518, said that he got on the escalator after § 87(2)(b) who began shouting obscenities (07 Board Review). PO Tenenbaum asked § 87(2)(b) to leave the mall, and § 87(2)(b) turned around and looked at his name or shield number, and either wrote it down or memorized it. PO Tenenbaum said § 87(2)(b) did not ask him for his name or shield number, and denied refusing or ignoring a request for this information as § 87(2)(b) did not ask.

PO Medina said that as she and PO Tenenbaum were going downstairs, § 87(2)(b) asked for PO Tenenbaum’s name and shield number, which he provided verbally (08 Board Review).

None of the other officers said that § 87(2)(b) asked PO Tenenbaum for his name or shield number, or stated that PO Tenenbaum refused to provide it (09, 10, 11, 12, and 13 Board Review).

Patrol Guide Procedure 203-09 requires officers to courteously and clearly state their name and shield number or otherwise provide this information to anyone who requests it (21 Board Review).

§ 87(2)(g)

§ 87(2)(g)

it is
recommended that **Allegation D** be *substantiated*.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date